

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF DIDENKO AND OTHERS v. RUSSIA

(Applications nos. 54032/17 and 26 others –
see appended list)

JUDGMENT

STRASBOURG

30 March 2023

This judgment is final but it may be subject to editorial revision.



In the case of Didenko and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 9 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants and organisers of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

6. The applicants complained principally of disproportionate measures taken against them as participants and organisers of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

7. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC],

no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

8. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

9. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

10. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-64, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to administrative escorting to and/or detention in a police station beyond three hours for non-custodial offences, without substantiating the impossibility to compile an offence report at the rally venue or any exceptional circumstances or another valid ground under the Code of Administrative Offences (CAO) or continued detention after the offence report was compiled; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the lack of a prosecuting party in criminal proceedings under the CAO; and *Martynyuk v. Russia*, no. 13764/15, §§ 37-43, 8 October 2019, related to the lack of a suspensive effect on an appeal against the sentence of detention.

IV. REMAINING COMPLAINTS

12. In view of the findings in paragraphs 10 and 11 above, there is no need to examine remaining complaints raised by some applicants under Articles 5 and 6 of the Convention.

13. Furthermore, some applicants also raised other complaints under various Articles of the Convention.

14. The Court has examined the applications listed in the appended table and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

16. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, *decides* that it is not necessary to examine the remaining complaints raised by some applicants under Articles 5 and 6 of the Convention, and *declares* the remainder of the applications inadmissible;

3. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

4. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 30 March 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention (disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	54032/17 17/07/2017	**Irina Viktorovna DIDENKO** 1994	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Volgograd 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 19/04/2017	Art. 5 (1) - unlawful detention - escorting to and detention in a police station on 26/03/2017 for the sole purpose of compiling an offence report	4,000
2.	54050/17 17/07/2017	**Aleksandr Vladimirovich NOVGORODOV** 1980	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 25/05/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
3.	54076/17 17/07/2017	**Mikhail Sergeyevich DIDENKO** 1988	Navalnyy Aleksey Anatolyevich Melekhovo	Anticorruption rally Volgograd 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 02/05/2017	Art. 5 (1) - unlawful detention - escorting to and detention in a police station on 26/03/2017 for the sole purpose of compiling an offence report	4,000
4.	55068/17 17/07/2017	**Georgiy Vasilevich DZIMISTARISHVILI** 1989	Navalnyy Aleksey Anatolyevich Melekhovo	Anticorruption rally Rostov-on-Don 26/03/2017	Article 19.3 § 1 of CAO	1 day of detention	Rostov Regional Court 25/04/2017	Art. 5 (1) - unlawful detention – on 26-27/03/2017 the applicant was brought to a police station and then kept in detention after the offence report was compiled; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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5.	60932/17 16/08/2017	**Irina Tomasovna YERMOLAYEVA** 1967	Khrunova Irina Vladimirovna Kazan	Anticorruption rally Kazan 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 24/05/2017	Art. 5 (1) - unlawful detention – detention on 29/03/2017 for more than 3 hours for compiling an offence report relating to the rally on 26/03/2017.	4,000
6.	60939/17 16/08/2017	**Ayrat Ilshatovich GARIPOV** 1998	Khrunova Irina Vladimirovna Kazan	Anticorruption rally Kazan 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 24/05/2017		3,500
7.	60978/17 16/08/2017	**Denis Olegovich KAYUMOV** 1998	Khrunova Irina Vladimirovna Kazan	Anticorruption rally Kazan 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 24/05/2017		3,500
8.	60987/17 16/08/2017	**Ivan Mikhaylovich KUZMIN** 1992	Khrunova Irina Vladimirovna Kazan	Anticorruption rally Kazan 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 24/05/2017		3,500
9.	60993/17 16/08/2017	**Aleksandr Vasilyevich NEBAYKIN** 1987	Khrunova Irina Vladimirovna Kazan	Anticorruption rally Kazan 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 24/05/2017		3,500
10.	60998/17 16/08/2017	**Vladimir Aleksandrovich SOLOVTSOV** 1967	Khrunova Irina Vladimirovna Kazan	Anticorruption rally Kazan 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 24/05/2017		3,500

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11.	69627/17 19/09/2017	**Nadezhda Pavlovna KHALIKOVA** 1997	Khrunova Irina Vladimirovna Kazan	Anticorruption rally St Petersburg 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 29/06/2017	Art. 5 (1) - unlawful detention - escorting to a police station on 26/03/2017 for the sole purpose of compiling an offence report.	4,000
12.	69652/17 19/09/2017	**Andrey Vitalyevich MARTIROSOV** 1995	Khrunova Irina Vladimirovna Kazan	Anticorruption rally St Petersburg 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 13/07/2017		3,500
13.	69798/17 20/09/2017	**Yuliya Damirovna SHALGALIYEVA** 1990	Khrunova Irina Vladimirovna Kazan	Anticorruption rally St Petersburg 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 06/07/2017		3,500
14.	69942/17 07/09/2017	**Mariya Sergeyevna NIZHIVENKO** 1997	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Tambov 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Tambov Regional Court 15/05/2017	Art. 5 (1) - unlawful detention - escorting to a police station on 26/03/2017 for the sole purpose of compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
15.	69947/17 07/09/2017	**Marat Masgodovich LATYPOV** 1972	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Naberezhnye Chelny 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 28/06/2017	Art. 5 (1) - unlawful detention - escorting to a police station and detention there on 26/03/2017 for the sole purpose of compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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16.	69953/17 07/09/2017	**Pavel Sergeyevich IVANOV** 1995	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Kurgan 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 5,000	Kurgan Regional Court 10/05/2017	Art. 5 (1) - unlawful detention - escorting to a police station and detention there on 26/03/2017 for the sole purpose of compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
17.	69964/17 07/09/2017	**Irina Yegorovna IVANOVA** 1969	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Kurgan 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 5,000	Kurgan Regional Court 10/05/2017	Art. 5 (1) - unlawful detention - escorting to a police station and detention there on 26/03/2017 for the sole purpose of compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
18.	70011/17 07/09/2017	**Svetlana Vladimirovna ABOLONINA** 1985	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Volgograd 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 24/05/2017		3,500
19.	70017/17 07/09/2017	**Aleksandr Vasilyevich ABOLONIN** 1983	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Volgograd 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 31/05/2017		3,500
20.	70193/17 07/09/2017	**Aleksandr Sergeyevich GOLYSHEV** 1964	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Naberezhnye Chelny 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 21/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to a police station and detention there on 26/03/2017 for the sole purpose of compiling an offence report.	4,000

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21.	70381/17 07/09/2017	**Roman Aleksandrovich ZOLOTOVITSKIY** 1960	Navalnyy Aleksey Anatolyevich Melekhovo	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 30/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
22.	70460/17 07/09/2017	**Vladislav Aleksandrovich ZAKAMOV** 1993	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Khabarovsk 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Khabarovsk Regional Court 14/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
23.	70518/17 07/09/2017	**Sergey Sergeyevich IVANOV** 1995	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Moscow 26/03/2017	Article 19.3 § 1 of CAO	12 days of detention	Moscow City Court 31/03/2017	Art. 5 (1) - unlawful pre-trial detention - on 26-28/03/2017 the applicant was brought to the police station to draw up an offence record; was kept in detention after the offence report was compiled; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - lack of suspensive effect on an appeal against the sentence of detention – the applicant started serving the sentence of administrative detention immediately after the conviction by the first-instance court; the lodging of appeal or appeal proceedings do not offer suspensive effect; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000

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24.	71026/17 07/09/2017	**Grigoriy Aleksandrovich PRONKOV** 1989	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 6.1 and Article 19.3 § 1 of CAO	fine of RUB 10,000 and 7 days of detention	Moscow City Court 17/05/2017 Moscow City Court 29/03/2017	Art. 5 (1) - unlawful detention - on 26-27/03/2017 the applicant, after having been brought to a police station to compile an administrative offence record, remained in detention even after the offence record had been compiled; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal: lack of a suspensive effect of an appeal against sentence of detention - the applicant started serving the sentence of administrative detention immediately after the conviction by the first-instance court; the lodging of appeal or appeal proceedings do not offer suspensive effect; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings.	5,000
25.	71112/17 18/09/2017	**Angelina Olegovna GORBACHENKO** 1997	Popkov Aleksandr Vasilyevich Sochi	Anticorruption rally Krasnodar 26/03/2017	Article 19.3 § 1 of CAO	fine of RUB 1,000	Krasnodar Regional Court 06/04/2017		2,000
26.	72015/17 25/09/2017	**Sergey Mikhaylovich MAKARCHUK** 1988	Katsko Vitaliy Nikolayevich Krasnodar	Anticorruption rally Krasnodar 26/03/2017	Article 19.3 § 1 of CAO	15 days of detention	Krasnodar Regional Court 06/04/2017	Art. 5 (1) - unlawful detention - escorting to a police station on 26/03/2017 and detention there for the sole purpose of compiling an offence report.	5,000
27.	79263/17 09/11/2017	**Aleksandr Vladimirovich BANNIKOV** 1991	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Rostov-on-Don 26/03/2017	Article 20.2 § 1 of CAO	fine of RUB 15,000	Rostov Regional Court 11/05/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

[1] Plus any tax that may be chargeable to the applicants.